

A.3.8

Policy/Guideline Title:	Additional Annual Leave Purchase Scheme		
Executive Summary:	The aim of this policy is to provide a uniform and equitable approach to the application and process for requests for additional annual leave.		
Supersedes:	Version 3		
Description of Amendment(s):	Updated job titles.		
This policy will impact on:			
Financial Implications:			
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Author:	Michelle O’Sullivan, Senior HR Advisor	Impact Assessment Date:	
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A.3.8: Additional Annual Leave Purchase Scheme



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- 1. Application for buying additional annual leave**
- 2. Calculation illustrating the cost of purchasing additional annual leave**

1. Introduction

Kettering General Hospital NHS Foundation Trust has implemented a scheme for employees to have the opportunity to buy up to two weeks (contracted hours) additional annual leave with deductions being made from pay. This policy will allow deductions from pay to be made over a 12-month period rather than in a single lump sum, as is the case with unpaid leave.

The Trust is committed to protecting the health and well-being of their employees and this scheme is intended to assist employees in balancing their work and home life.

2. Purpose

The aim of this policy is to provide a uniform and equitable approach to the application and process for requests for additional annual leave. Whilst the needs of the service will always remain paramount when deciding on whether an application for additional annual leave can be granted, reasons for refusal will always be discussed with the individual applicant.

The policy applies to all employees (except for Bank Staff) who are employed by Kettering General Hospital NHS Foundation Trust.

The aim of the policy is to;

- Ensure that additional annual leave requests are managed in a fair and equitable way.
- Explain the process for applying for additional annual leave.

3. Responsibilities

Line managers will:

- Ensure effective in-person communication between themselves as they carry out the policy and staff reporting to them that benefit from the policy so that staff understand the process for applying for additional annual leave.
- Use eRostering/eTimesheets to maintain a record of annual leave and monitor leave taken.
- Treat all staff with dignity and respect ensuring that this policy is applied equitably and staff raising queries about it are responded to.

Human Resources will:

- Act as a point of reference on interpretation of the policy where there is a disagreement on its application between line manager and their report(s).

Staff will:

- Apply for additional annual leave using the appropriate forms (Appendix 1)
- Understand that a request for additional annual leave is not authorised until approved by the relevant line manager and will only be approved where it meets the needs of the service.

4. Definitions

The Trust

Kettering Hospital NHS Foundation Trust

Trade Unions

recognised and accredited by the Trust

Agenda for Change

the NHS Pay System for non-medical staff

5. Scheme Details

An employee of the Trust may apply to purchase additional leave subject to the following criteria:

- must have completed one full year's service with the Trust at the time of application;
- ideally have a minimum attendance level (excluding annual and other Trust approved leave) of 96% in the previous year. NB: This will be subject to the line manager's discretion.

Applications must be made for complete weeks (contracted hours) of up to a maximum of two (pro-rata). Individual days (equivalent hours) will not be considered.

The scheme will ensure pension entitlements are not affected as pension contributions will be made prior to deduction from salary.

Booking of leave will be subject to the normal departmental annual leave arrangements and requests for leave should continue to be made in the usual way in accordance with local policies.

6. Application Process

Staff wishing to apply for additional annual leave should do so by completing and submitting the application form contained at Appendix 1 to their line manager.

Once an application has been submitted, the employee's manager will consider the request and confirm to the employee their decision, with clear reasons if approval is not given, within ten working days of the request being received.

Approval of additional leave is entirely at the discretion of the relevant manager and is subject to the needs of the service. An application can therefore be refused if there is an unacceptable impact on service delivery.

Requests agreed for additional annual leave by line managers will be on the basis that they will not be permitted to cover the resulting gap through any means that incurs an additional cost, including overtime, additional hours, Bank or Agency.

Although there is no automatic right to additional leave, every application will be carefully considered. In the event of a manager's refusal, clear reasons must be given to the employee, e.g., operational or technical reasons either related to the individual's job or service needs. Other alternative options should be explored before refusing a request; for example, managers may agree to grant just part of the request. (e.g., grant one week leave where two weeks have been requested). In this case, the reasons should be clearly communicated to the applicant in writing. Care must be taken to avoid unfairness in the application of the policy.

Once approval has been given, a copy of the signed form must be given to the staff member and the original filed on the personal file.

The Line Manager must immediately complete the e-Form to instruct Payroll to commence adjustments from the next pay cycle. The form must state "Purchase of Additional Annual Leave" and then the hours must be stated.

Any employee or manager wishing to withdraw from the arrangement must give at least three months' notice of any withdrawal. Salary deductions will continue in respect of any purchased leave already taken.

Any grievance arising from the operation of the policy should be addressed by using the Trust Grievance Policy.

In line with the current Trust annual leave policy on carry forward, if having purchased additional annual leave, the employee fails to take this leave before the end of the relevant leave year (unless specifically prevented), this leave will be lost. Only in very exceptional circumstances can arrangements be made for the carry forward of the additional leave and agreement for this can only be given by the line manager/head of department. In line with the Annual Leave policy, any leave carried over must be taken within the first 3 months of the new leave year, i.e., by 30th June. See the Annual Leave policy for further details on the carryover of annual leave.

The Line Manager is responsible for monitoring the additional leave taken and, where an employee leaves the Trust, informing Payroll to:

- reimburse any untaken outstanding additional leave due at the date of leaving.
- recover any annual leave if the employee has overtaken their entitlement. Payments will be recovered prior to leaving.

If an employee either increases or reduces their contractual hours during the leave year, the situation will be reviewed by the line manager and it may be necessary for the amount to be deducted from salary to be recalculated.

7. Medical Staff

If Consultants and senior medical staff wish to pursue this option, they should discuss this with their Clinical Management Team in the first instance. They will need to provide reassurance that purchasing additional annual leave will not impact on their colleagues or service commitments.

Where possible, it would be advisable for the manager to explore with the employee alternatives such as job plan review, flexible working with annualisation of clinical sessions or swapping of additional sessions for annual leave.

8. Doctors in Training

Doctors in training grades will need to discuss their proposal with their Supervisor and Director of Medical Education and will need to confirm that the Deanery, Training Programme Director or Post-Graduate Dean's Office (as appropriate) confirm that any additional absence will not have an adverse impact on their training progress.

9. Training

There is no mandatory training associated with this policy. Individuals' training needs will be identified through annual appraisal and supervision.

10. Monitoring Compliance with the Document

Monitoring Compliance					
Process to be used for monitoring e.g. audit	Responsible individual / committee for carrying out monitoring	Frequency of monitoring	Responsible individual / committee for review the results	Responsible individual / committee for developing action plan	Responsible individual / committee for monitoring action plan
Audit of annual leave carry over	Head of People Planning	Annually	JCNC	Head of People Planning	People Committee

Audit of % clinical leave booked on each roster	Head of People Planning	Weekly	JCNC	Head of People Planning	People Committee
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11. References

KGH Annual Leave (Non-Medical Staff) Policy
 KGH Medical Leave Policy

Appendix 1

Application for buying additional annual leave	
Name:	Payroll No:
Job Title:	Hours worked per week:
Work Area:	Sex: M / F
Staff Group:	Ethnic Group:
Manager's Name:	Do you consider yourself disabled? YES / NO
How much additional Annual Leave would you like to buy? (Please specify in weeks & hours; minimum: 1 week - maximum: 2 weeks) weeks = hours	If your manager is unable to approve the full request, do you want him/her to consider part of the request? YES / NO
N.B. 1. The taking of additional annual leave will be subject to the usual rules of the Ward or Department. 2. Where additional annual leave is approved there will be a reduction in annual salary spread over 12 months, as follows: basic hourly rate x hours approved (See Appendix 2). NB: The basic hourly rate will be based on your salary as at the date the additional leave is approved. I agree for deductions to be made from my salary in equal instalments for the total cost of my additional annual leave. Payroll will confirm the monthly deductions, in writing, prior to commencement of these deductions. I also understand that if I leave the Trust's employment any outstanding balance will be recovered / refunded as appropriate, against my final salary.	
Signature of employee:Date: ** Please forward this form to your Manager for completion and signing **	
Manager's Response: Request fully approved Yes / No Request partially approved Yes / No (please give details below) Request refused Yes / No (please give details below)	
Manager's SignatureDate:	
Reason why request partially approved: Additional Leave partially agreed, please outline details of what has been agreed:	
Reason why request refused:	

(Separate sheet as necessary)

Payroll Signature:Date:

Confirmation letter sent: Yes / No Date Sent:.....

NB: Manager to give a photocopy to the employee and then file the completed application form in the personal file. Instructions to Payroll to make deduction should be made on an Electronic Payroll form immediately upon this form being approved.

Appendix 2

Calculation illustrating the cost of purchasing additional annual leave

The purchase of additional annual leave will be based on hours purchased.

Please refer to the Appendix 3 of the Annual Leave policy to find the annual leave in hours that corresponds to your weekly basic contracted hours.

The cost of the additional annual leave purchased would then be the hours purchased multiplied by your hourly annual salary.